

Mohd. Naeem v. State of U.P.

Allahabad High Court · Division Bench · 21 September 2017 · WRIT - C No. - 45177 of 2017 · **Writ dismissed as withdrawn with liberty after obtaining documents.**

HEADNOTE

A writ on electricity assessment was dismissed as withdrawn at counsel's request. The petitioner was directed first to obtain necessary documents from the Executive Engineer and, if still aggrieved, to avail remedies under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. Assessment was not decided on merits.

FACTUAL SUMMARY

Mohd. Naeem invoked the Allahabad High Court's writ jurisdiction against the State of Uttar Pradesh and electricity authorities in a dispute over assessment. After the Division Bench heard the matter, counsel sought permission to withdraw and to file a better writ on the assessment. The Court allowed withdrawal, directed the petitioner to obtain the necessary documents first from the concerned Executive Engineer, and recorded that if still aggrieved he may pursue the remedies under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

INTERPLAY · UP-2005::assessment

assessment; withdrawal with liberty; statutory remedy

HOLDING

On the petitioner's request, the writ concerning assessment is dismissed as withdrawn. Before any further challenge, he is to obtain the necessary documents from the Executive Engineer; if still aggrieved, he may avail the remedies under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005. The assessment is not examined on merits. ¶ 1

FLAG Order cites the 'U.P. Electricity Act 2003' (Electricity Act, 2003) and the Supply Code 2005 without a section or clause number.

PRINCIPLE TAGS

assessment-withdrawal-with-liberty-statutory-remedy A writ on electricity assessment was dismissed as withdrawn at counsel's request. The petitioner was directed first to obtain necessary documents from the Executive Engineer and, if still aggrieved, to avail remedies under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE ASSESSMENT

Writ withdrawn; assessment not examined on merits. ¶ 1